

(2) Every licence shall expire at the end of the licensing year for which it is taken out, whether it is taken out before or after the commencement of such year.

(3) A licence shall not be required for any dog whilst it is under the age of one month.

(4) In section six of the principal Act the words "on or before the thirty-first day of March in each year" and the words from "which shall" to "date of such licence," and in section twenty of the principal Act the words "from and after the thirty-first day of March in each year," shall be repealed.

3. The Lord Lieutenant may make regulations for prescribing anything requiring to be prescribed for the purposes of this Act and for making such adaptations of the forms in the schedules to the principal Act as may be necessary, and generally for carrying the principal Act and this Act into effect.

Regulations.

4. The power of the Lord Lieutenant to fix the amount of the salaries to be paid to petty sessions clerks, as defined in the Petty Sessions Clerks (Ireland) Act, 1881, shall include power to grant increases of salaries, to take effect for such time and to be reckoned for superannuation purposes in such circumstances and to such extent only as may be directed by the Lord Lieutenant, notwithstanding anything to the contrary in section one or section five of the said Act.

Salaries of petty sessions clerks, &c.
44 & 45 Vict.
c. 18.

5.—(1) In this Act the expression "licensing year" means the twelve months ending the thirty-first day of March.

Interpretation, construction and citation.

(2) This Act may be cited as the Dogs Regulation (Ireland) Act, 1919, and the principal Act and this Act shall be construed together and may be cited together as the Dogs Regulation (Ireland) Acts, 1865 and 1919.

CHAPTER 82.

An Act to facilitate the provision of land in Ireland for men who have served in the Naval, Military, or Air Forces of the Crown in the present war, and for other purposes incidental thereto. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Advances under the Land Purchase Acts for the purchase of parcels of estates or untenanted land vested in the Land Commission may be made to any men who have served in any of His Majesty's naval, military, or air forces in the present war, and who satisfy the Estates Commissioners as to

Provision of holdings for sailors and soldiers under the Land Purchase Acts.

their fitness and suitability, in like manner as if they were tenants or proprietors of holdings not exceeding ten pounds in rateable value.

(2) Where the Estates Commissioners certify to the Lord Lieutenant that any land not being land vested in the Land Commission is required by the Estates Commissioners wholly or mainly for the purpose of providing holdings for any such men, then—

- (a) If the land is or forms part of an estate or untenanted land agreed to be sold to the Land Commission or Congested Districts Board under the Land Purchase Acts, the Lord Lieutenant may cause the sale to be expedited in accordance with regulations to be made for the purpose under section four of the Irish Land Act, 1909, and also in the case of an estate or untenanted land agreed to be sold to the Board, may, after consultation with the Board, direct that the sale, either as respects the whole of the estate or untenanted land, or as respects any part or parts thereof, shall be transferred from the Board to the Commission, and in that event the sale, as so transferred, shall be carried out and completed by the Commission in the prescribed manner; and
- (b) If the land is land vested in the Congested Districts Board, the Lord Lieutenant may, after consultation with the Board, require the Board to sell, and the Land Commission to purchase the same or any part thereof on such terms as may be agreed upon with the approval of the Treasury or, in default of agreement, as may be determined by the Lord Lieutenant with the approval of the Treasury, and the land so purchased shall be transferred accordingly from the Board to the Commission in the prescribed manner; and
- (c) If the land is land which is not vested in the Congested Districts Board and is not the subject of an agreement for sale under the Land Purchase Acts, the Lord Lieutenant may (whether the land is or is not situated in a congested districts county, but, in the case of land so situated, after consultation with the Congested Districts Board), authorise the Land Commission to purchase the same, and thereupon the provisions of those Acts as to the purchase of estates by the Land Commission shall apply as respects the land in like manner as if it were a congested estate, the purchase of which is required for the purpose of relieving congestion, and as if the certificate under this section were a certificate under subsection (4) of section six of the Irish Land Act, 1903:

9 Edw. 7. c. 42.

Edw. 7. c. 37.

Provided that, in any case where the price of the land is fixed by the Judicial Commissioner under section sixty-three of the Irish Land Act, 1909, the Land Commission may, if they think fit, on serving such notice within such time as may be prescribed, withdraw from the purchase.

(3) Section fifty-eight of the Irish Land Act, 1909, shall not apply to any purchase of land which is directed or authorised by the Lord Lieutenant under this section.

(4) Pending the resale of any land which the Land Commission propose to re-sell to such men as aforesaid, the Commission shall have power to manage and let the land in such manner as they think advisable.

(5) Section ninety-one of the Lands Clauses Consolidation Act, 1845, is hereby incorporated with this section, and in construing the said section as so incorporated this Act shall be deemed to be the special Act, and the Estates Commissioners shall be deemed to be the promoters of the undertaking. 8 & 9 Vict.
c. 18.

(6) The Judicial Commissioner and Estates Commissioners may make rules for carrying into effect the provisions of this section and in particular for prescribing anything requiring to be prescribed under this section and for making such adaptations of the provisions of the Land Purchase Acts as may be necessary or expedient for effectuating the transfer of land or sales of land from the Board to the Commission under this section.

2.—(1) When a holding has been vested in any such man as aforesaid under the special powers conferred by section one of this Act— Restraint on
alienation of
holdings or
stock provided
under Act.

(a) the holding shall not be transferred, subdivided, or let by him without the consent of the Land Commission, and every attempted transfer, subdivision, or letting in contravention of this provision shall be void, and on any such contravention the holding shall, at the option of the Land Commission, revert in the Land Commission :

(b) the holding shall not, nor shall any stock or other chattels provided for him by means of a grant or loan under the Irish Land Act, 1903, be made available in any bankruptcy or by any other process or proceeding of law to pay, satisfy, or discharge in whole or in part any debt contracted or incurred by him prior to the date on which the holding became vested in him other than a debt due to the Land Commission.

(2) A certificate purporting to be under the common seal of the Land Commission shall be conclusive evidence that the holding therein described was vested in the man therein named under the special powers conferred by section one of this Act.

Expenses of
Land Commis-
sion.

3.—(1) Any moneys required by the Land Commission for the exercise of the powers of managing and letting land given to them by this Act shall be provided under section twenty-eight of the Irish Land Act, 1909, in the same manner as money required for the exercise of their powers for the improvement or benefit of estates and untenanted land.

(2) Prior to the resale of any land which has been managed or let by the Land Commission pending resale, an account shall be prepared by the Land Commission showing the profit or loss in connexion with the management and letting, and, if the account shows a profit, the amount thereof shall be applied in satisfaction or reduction of the amount, if any, expended by the Commission for the benefit or improvement of the land, and, subject thereto, shall be paid to the Exchequer, and, if the account shows a loss, the amount thereof shall be treated as money expended by the Commission on the improvement of the land.

(3) Section twenty-nine of the Irish Land Act, 1909, shall apply to any land resold to such men as aforesaid in like manner as if the land were a congested estate.

Provision of
cottages, &c.,
for ex-service
men under the
Labourers
(Ireland) Acts.

4.—(1) The Local Government Board shall have power to make and carry out schemes for the provision of cottages with or without plots or gardens for the accommodation of men who have served as aforesaid, and who satisfy the Board as to their fitness and suitability.

(2) A scheme under this section shall specify the land which the Board propose to acquire for the purposes of the scheme whether by agreement or compulsorily, and notice of the scheme and of the time (not being less than twenty-one days) within which objections to the scheme must be sent to the Board shall be given in the prescribed manner to the owners or reputed owners, lessees or reputed lessees, and occupiers of the land.

(3) On the expiration of the time limited for sending objections the Board, after considering any objections that may have been duly sent to them, may make an order confirming the scheme with or without modifications, or may reject the scheme.

(4) For the purpose of carrying out any scheme when so confirmed, the Local Government Board, in addition to their other powers, shall have and may exercise all the powers except powers of borrowing or causing a rate to be levied that may be exercised by a rural district council under the Labourers (Ireland) Acts, 1883 to 1919, for the purpose of carrying out an improvement scheme when confirmed by a final order under section six of the Labourers (Ireland) Act, 1906, including powers of acquiring land by agreement or compulsorily, and, subject to such adaptations as may be made under this section,

those Acts and the Acts incorporated therein shall apply accordingly with the following modifications, namely:—

- (a) an order of the Board confirming a scheme under this section shall have the like effect as if the scheme were an improvement scheme and the order were an order made and confirmed under section six of the Labourers (Ireland) Act, 1906 ;
- (b) two statute acres shall be substituted for one statute acre as the maximum area of the plot or garden that may be provided ;
- (c) expenses incurred in making and carrying out schemes under this section shall be defrayed in manner provided by this section ; and
- (d) the power of acquiring land shall not be exercised by the Board after the expiration of three years from the passing of this Act.

(5) Any cottage, plot, or garden provided under this section which ceases to be required for the accommodation of any such man as aforesaid may be let or otherwise disposed of in such manner as the Board may, with the approval of the Treasury, determine.

(6) The Local Government Board may make orders adapting the provisions of the Labourers (Ireland) Acts, 1883 to 1919, and any enactments incorporated therewith, in such manner as may appear to them to be necessary or expedient in order to give full effect to the provisions of this section.

(7) The expenses incurred by the Local Government Board in making and carrying out schemes under this section shall, to such extent as may be sanctioned by the Treasury, be defrayed out of moneys provided by Parliament, and the receipts of the Local Government Board in respect of cottages, plots, and gardens provided under such schemes shall be paid into the Exchequer at such times and in such manner as may be directed by the Treasury.

(8) The Local Government Board shall, in connexion with schemes under this section, prepare an annual account in accordance with such directions as may be given by the Treasury, and shall transmit the account to the Controller and Auditor General, and the Controller and Auditor General shall certify and report upon the same, and such account and report shall be laid before Parliament as soon as may be after the report is made.

5.—(1) The Department of Agriculture and Technical Instruction for Ireland (in this Act referred to as “the Department”) shall have power to promote co-operation in connexion with holdings or plots or gardens provided under this Act, and section two of the Small Holding Colonies Act, 1916, shall apply accordingly with the substitution of

Power of
Department
to promote
co-operation
in connexion
with holdings
or plots or
gardens pro-
vided under
Act,
6 & 7 Geo. 5,
c. 38.

references to the Department for references to the Board of Agriculture and Fisheries, and of references to this Act for references to that Act and with the omission of the provisions relative to the transfer of small holdings.

(2) Any moneys required by the Department for the purpose of promoting co-operation under this Act shall, to an amount sanctioned by the Treasury, be paid as part of the expenses of the Department under Part I. of the Agriculture and Technical Instruction (Ireland) Act, 1899.

62 & 63 Vict.
c. 50.

Amendment of
6 & 7 Geo. 5.
c. 60.

6. In the application to Ireland of subsection (1) of section one of the Sailors and Soldiers (Gifts for Land Settlement) Act, 1916, any references to the Department of Agriculture and Technical Instruction for Ireland shall be construed as including references to the Land Commission and to the Local Government Board.

Consideration
of applicant's
wishes.

7. In dealing with applications made in accordance with the provisions of this Act regard shall, so far as reasonably possible, be had for the wishes of individual applicants as to the locality in which they desire their land, plot, or cottage to be situated.

Short title and
construction.

9 Edw. 7. c. 42.

8. This Act may be cited as the Irish Land (Provision for Sailors and Soldiers) Act, 1919, and, so far as it relates to the provision of holdings under the Land Purchase Acts, shall be construed as one with those Acts, and, so far as it relates to the provision of cottages, plots, or gardens under the Labourers (Ireland) Acts, 1883 to 1919, shall be construed as one with the last-mentioned Acts.

CHAPTER 83.

An Act to amend the Workmen's Compensation (War Addition) Act, 1917. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Increase of
additional
weekly sum
payable under
7 & 8 Geo. 5.
c. 42.

1. As from the commencement of this Act the additional weekly sum payable under the Workmen's Compensation (War Addition) Act, 1917 (in this Act referred to as "the War Addition Act"), shall, instead of being a sum equal to one-quarter of the amount of the weekly payment, be a sum equal to three-quarters of the amount of the weekly payment.

Extension of
right to ad-
ditional sum to

2. The War Addition Act, as amended by this Act, shall apply to workmen entitled during total incapacity to weekly